Topic 7 — Parliament

Covers syllabus (click to expand)

Houses & Organisation: Parliament | Rajya Sabha (राज्यसभा) | Lok Sabha (लोकसभा) | Composition & Nomination | Qualification & Disqualification of Members | Office of Profit | Speaker | Deputy Speaker | Pro Tem Speaker | Chairman of Rajya Sabha | Joint Sitting (संयुक्त बैठक) | Parliamentary Privileges | Parliamentary Secretariat | Whip | Sessions of Parliament | Summoning (आहूत करना), Prorogation (सत्रावसान), Adjournment (स्थगन), Dissolution (विघटन) | Quorum (गणपूर्ति) | Lame Duck Session (पंगु सत्र) **Budget, Bills, Devices, Committees:** Budget | Consolidated Fund | Contingency Fund (आकस्मिकता निधि) | Public Account (लोक लेखा) | Charged Expenditure (भारित) | Demand for Grants | Appropriation Bill | Vote on Account | Supplementary / Excess / Additional Grants | Vote of Credit & Exceptional Grant | Ordinary Bill | Money Bill | Financial Bill (वित्तीय) | Finance Bill (वित्त) | Constitutional Amendment Bill | Private Member Bill | Money Bill vs Financial Bill | Lapsing of Bills | Question Hour (प्रश्न काल) | Zero Hour (शून्य काल) | Half-an-Hour Discussion | Short Duration Discussion | Calling Attention | Adjournment Motion (स्थगन प्रस्ताव) | Censure | No-Confidence (अविश्वास प्रस्ताव) | Confidence | Privilege Motion | Cut Motions (कटौती प्रस्ताव) | Closure | Guillotine | Point of Order | PAC (लोक लेखा समिति) | Estimates (प्राकलन समिति) Committee | COPU | DRSCs | Business Advisory | Rules | Ethics | Privileges | Petitions | Subordinate Legislation | Government Assurances

Sources baked in: Laxmikanth (Parliament), Constitution Part V Ch. II (Arts. 79–122) + Arts. 107–117, 265–267, 368, UPPCS Prelims PYQs 2018–2025 **Weight:** ★★★ — Art. **110 ≠ 109 ≠ 117**; Money Bill only LS + Speaker's certificate + RS 14 days; joint sitting never for Money/CAB; PAC 22 (15+7) chair from **opposition**; Estimates **30 LS-only** (largest among options); Zero Hour = **after** Question Hour; CFI 266 / Contingency **267 Last verified:** September 2026 — Ghatnachakra Extra Drill (Lok Sabha + Rajya Sabha + Conduct/Procedure + Committees); teaching gap-pass from dump **Current Affairs:** 18th Lok Sabha (2024); **Om Birla** Speaker (second term); Deputy Speaker post vacant since May 2019; **Rahul Gandhi** LoP; **Sudha Murty** / Satnam Singh Sandhu nominated to RS (2024); new Parliament building (**Bimal Patel**, inaugurated 28 May 2023); PAC chair **K.C. Venugopal** (2024–25)

Current Affairs

- **2024: 18th Lok Sabha** constituted; **Om Birla** re-elected Speaker; **Rahul Gandhi (गांधी)** recognised as Leader of the Opposition.
- **2019–20: 104th Amendment** ended Anglo-Indian nomination to LS (and State Assemblies) — Art. 331 / 334 trap.
- **Frozen:** LS territorial seats frozen on **1971** census till the first census after **2026** (84th) — delimitation.
- **Jan 2022:** ECI revised candidate expenditure ceilings — Lok Sabha up to **₹95 lakh** (smaller States **₹75 lakh**); Assembly up to **₹40 lakh** (smaller States **₹28 lakh**).
- **2024 polls:** 7 phases; **Malogam** (Arunachal East) one-voter booth; **Shompen** (Great Nicobar (निकोबार)) voted for the first time in Andaman (अंडमान) & Nicobar LS seat.

- **2017–:** Union Budget on **1 February**; **Railway Budget merged** with General Budget.
- **Convention:** PAC chair from the **Opposition** (since 1967).
- **18th Lok Sabha committee chairs (2024–25, Om Birla): Public Accounts — K.C. Venugopal**; **Estimates — Sanjay Jaiswal**; **Public Undertakings — Baijayant Panda**; **SC/ST Welfare — Faggan Singh Kulaste**; **OBC (अन्य पिछड़ा वर्ग) Welfare — Ganesh Singh**. Trap: Baijayant Panda is **COPU**, not Estimates.

UKPCS Prelims 2025

Q. UKPCS Prelims 2025, Q130

Who among the following officials can be invited to give his opinion in the Parliament?

A. Auditor General B. Attorney General (महान्यायवादी) C. Chief Justice of India D. Governor

Show answer

Logic: Only one of the four (चातुर्याम) has a constitutional right of audience in Parliament under Art. 88. **Ans: B (Series B provisional key).** Attorney General may speak in either House under Article 88 (no vote). CAG (भारत के नियंत्रक-महालेखापरीक्षक) reports to Parliament but does not address it this way.

Parliament — the frame (Art. 79–81)

- **Art. 79:** Parliament of the Union = the **President** + **Rajya Sabha** (Council of States) + **Lok Sabha** (House of the People).
- Bicameral. President is an **integral part** of Parliament (assent, summons, address, messages under **Art. 86**, special address under **Art. 87**) even though he sits in neither House.
- **Art. 98:** each House has its own **Secretariat**, independent of the executive; **Secretary-General** is the administrative head.
- **Art. 120:** business in Hindi or English; a member may speak in his mother tongue with the Presiding Officer (पीठासीन अधिकारी)'s permission. English continues under the **Official Languages Act, 1963**.
- **Art. 106:** salaries/allowances of MPs are determined by **Parliament by law**.
- **Art. 88:** every Minister and the AG may **speak in both Houses** and in committees of which they are named, but **vote only** in the House of which they are a member.

PYQ — UPPCS Prelims 2024, Q22

Which of the following is/are stated in the Constitution of India?

1. The President shall not be a member of either of the Houses of the Parliament.
2. The Parliament shall consist of the President and both Houses.

A. Both 1 and 2 B. Only 2 C. Neither 1 nor 2 D. Only 1

Show answer

Ans: A — Both. Art. 79 + Art. 59 (seat vacated if a sitting member becomes President).

Rajya Sabha — composition & special powers (Art. 80, 83)

Council of States — the permanent federal chamber. Its seats are **not** equal per State, unlike the **US Senate**.

- The **maximum strength** of the Rajya Sabha under Art. **80** is **250** members.
- Of these, **238** are representatives of the States and Union Territories, and **12** are **nominated** by the President.
- The **present strength** is **245** — **233** elected members plus **12** nominated members.
- Seats are allocated among States under the **Fourth Schedule**, on a **population-weighted** basis — **not** equally, as in the US Senate.
- Rajya Sabha members are elected **indirectly**, by the **elected MLAs** of each State's Legislative Assembly.
- The election method is **proportional representation by single transferable vote (PR-STV)**, by **secret ballot**.
- **Legislative Councils do not vote** in Rajya Sabha elections — only the elected members of the Assembly do.
- Among the Union Territories, only **Delhi (3 seats)**, **Puducherry (1 seat)**, and **Jammu & Kashmir (4 seats)** elect members to the Rajya Sabha.
- All **other Union Territories have no Rajya Sabha representation**.
- The President **nominates 12 members** who have special knowledge or practical experience in **literature, science, art, or social service**.
- **Sport** is **not** one of these four listed fields — a recurring trap.
- A nominated member must otherwise be **qualified to be a member of the Rajya Sabha**.
- The **term** of a Rajya Sabha member is **6 years**.
- **One-third of members retire every two years** (biennial retirement); the **House itself is never dissolved**.
- A member elected to fill a **casual vacancy** serves only for the **remainder** of the predecessor's term.
- The **minimum age** to be a Rajya Sabha member is **30 years** (Art. **84**).
- The **Vice-President** is the ***ex-officio* Chairman** of the Rajya Sabha and is **not himself a member** of the House.
- The **Deputy Chairman** is elected **from among the members** of the Rajya Sabha (Art. **89**); his **removal** is under Art. **90**.

Nominated members — what they can and cannot do

- A nominated member **can sit, speak, and serve on committees** like any elected member.
- A nominated member **can be appointed a Minister**.
- A nominated member **cannot vote** in the election of the **President**.
- A nominated member **can vote** in the election of the **Vice-President**.

- A nominated member may **join a political party (राजनीतिक दल) within 6 months** of taking his seat without attracting the **Tenth Schedule**.
- Joining a party **after** that six-month window is treated as **defection**.

Special powers of the Rajya Sabha (which the Lok Sabha does not have)

- Under **Art. 249**, the Rajya Sabha may pass a resolution, by a majority of **not less than two-thirds (ते-भागा) of members present and voting**, authorising Parliament to legislate on a **State List** (राज्य सूची) subject in the **national interest**.
- A law passed under Art. 249 remains in force for **one year**, and it can be **renewed** any number of times by a fresh resolution.
- Under **Art. 250**, while a Proclamation of Emergency is in operation, Parliament may legislate on any State List matter for the whole or any part of India; such a law expires **six months** after the Emergency ends (unless earlier repealed).
- Under **Art. 252**, Parliament may legislate for **two or more States** by their consent, and other States may later **adopt** that law.
- Under **Art. 253**, Parliament may legislate for the whole or any part of India to implement **international treaties, agreements, or conference decisions** — **without** State consent, even on a State List subject.
- Under **Art. 312**, the Rajya Sabha may pass a similar resolution (again by **two-thirds present and voting**) declaring it necessary to create a new **All-India Service**.
- A resolution to **remove the Vice-President** can be **introduced only in the Rajya Sabha** (Art. **67**).
- The Rajya Sabha has an **equal say with the Lok Sabha** in approving Emergency proclamations under Arts. **352, 356, and 360** — the Lok Sabha's exclusive powers are confined to Money Bills and confidence, not to Emergency approval.
- Teaching personalities: **Nargis Dutt** was the first actress nominated to the Rajya Sabha (**1980**). In **2024**, President Murmu nominated **Satnam Singh Sandhu** and **Sudha Murty** (Sudha Murty reported as completing the twelfth nominated slot).

> **Logic:** The Art. **312** majority is **two-thirds of members present and voting**, **not** two-thirds of the total membership. The Rajya Sabha is a **continuing chamber** and can **never** be dissolved.

PYQ — UPPCS Prelims 2024, Q38

Which of the following statements regarding Rajya Sabha is correct?

A. It can never be dissolved. B. It is elected directly by the people. C. It has a tenure of five years. D. It is presided over by the Prime Minister.

Show answer

Ans: A. Indirect election; 6-year term of members (House itself is permanent); presided over by the **Vice-President**.

PYQ — UPPCS Prelims 2025, Q11

With reference to creation of new All India Service, which of the following statements is/are correct?

1. In the national interest, the Rajya Sabha can pass a resolution for creation of new All India Service.
2. The resolution for creation of new All India Service must be passed by the Rajya Sabha by two-third majority of the **total members** of the House.

A. Only 2 B. Neither 1 nor 2 C. Both 1 and 2 D. Only 1

Show answer

Ans: D — Only 1. Art. 312 = **2/3 of members present and voting**, not of total membership.

PYQ — UPPCS Prelims 2018, Q72

The Council of States has exclusive powers in relation to which of the following?

A. To initiate proceedings for the removal of the President B. To initiate proceedings for the removal of a judge of the Supreme Court C. To recommend creation of a new All India Service D. None of the above

Show answer

Ans: C (Art. 312). Impeachment of the President / removal of an SC judge can start in **either** House.

Rajya Sabha seats — high-yield match list

State-wise Rajya Sabha seats are a recurring Match-List favourite. **Uttar Pradesh has the most seats of any State — 31.**

State / UT	RS seats
Uttar Pradesh	**31** (largest)
Maharashtra	**19**
Tamil Nadu	**18**
Bihar	**16**
West Bengal	**16**
Karnataka	**12**
Andhra Pradesh	**11**
Gujarat	**11**
Madhya Pradesh	**11**
Rajasthan	**10**
Odisha	**10**
Kerala	**9**
Punjab	**7**
Telangana	**7**

State / UT	RS seats
Assam	**7**
Jharkhand	**6**
Chhattisgarh	**5**
Haryana	**5**
Jammu & Kashmir	**4**
Himachal (हिमाचल) Pradesh	**3**
Uttarakhand (उत्तराखंड)	**3**
NCT of Delhi	**3**
Goa (गोवा) and other small North-Eastern States	**1** each
Puducherry	**1**

> Note: Row order in this table is **not** the answer — only the numbers matter.

PYQ — UPPCS Prelims 2025, Q18

Match List-I with List-II and choose the correct answer using the code given below the lists.

A. Maharashtra B. Karnataka C. Bihar D. Tamil Nadu 1. 16 2. 18 3. 19 4. 12

A. A-2, B-1, C-3, D-4 B. A-2, B-4, C-3, D-1 C. A-1, B-2, C-4, D-3 D. A-3, B-4, C-1, D-2

Show answer

Ans: D — MH 19, KA 12, Bihar 16, TN 18.

PYQ — UPPCS Prelims 2021, Q11

Match List-I with List-II and select the correct answer using the codes given below the lists.

A. Rajasthan B. Gujarat C. Karnataka D. Punjab 1. 10 seats 2. 7 seats 3. 11 seats 4. 12 seats

A. A-1, B-3, C-4, D-2 B. A-2, B-3, C-4, D-1 C. A-1, B-2, C-3, D-4 D. A-4, B-3, C-1, D-2

Show answer

Ans: A — RJ 10, GJ 11, KA 12, PB 7.

PYQ — UPPCS Prelims 2023, Q14

With reference to the representation of Uttar Pradesh in Parliament, which of the following statement(s) is/are correct?

1. Uttar Pradesh has 31 seats allotted for Rajya Sabha.
2. Eighty members of the Lok Sabha are elected from Uttar Pradesh.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: C — Both. UP = **31 RS + 80 LS** (largest in both Houses).

Lok Sabha — composition (Art. 81–83, 331)

House of the People — the directly elected popular chamber. Unlike the Rajya Sabha, it **can be dissolved**.

- The **maximum strength** of the Lok Sabha under Art. **81** is **550** — **530** from the States and **20** from the Union Territories. (Older texts saying **552** counted **2** Anglo-Indian nominees under Art. **331** — that path **ended** after 25 January **2020**.)
- The **present strength** is **543** elected members (**524** from States + **19** from UTs).
- Article **331** used to let the President **nominate 2 Anglo-Indian** members to the Lok Sabha.
- The **104th Amendment (2019)** did **not** extend this nomination — it **ended in January 2020**.
- Members are elected **directly**, by **First Past the Post**, from **territorial constituencies** (Art. 81).
- Under Art. **81(2)**, seats are allotted to States, and constituencies are carved within a State, so as to keep the population-to-seat ratio **as uniform as practicable** across the country.
- Seat allocation among States and constituency boundaries were **frozen on 1971 population (जनसंख्या)** by the **42nd (42वां) Amendment**.
- The **84th Amendment (2001)** continued that freeze **until the first census after 2026**.
- Under Art. **82**, seats are **readjusted after every census** by a **Delimitation Commission** set up by an Act of Parliament — the next full delimitation will follow the census after 2026.
- Under Art. **330**, Lok Sabha seats are **reserved for SC and ST candidates** in proportion to their population in each State. After the **2008** delimitation order: **84** SC seats and **47** ST seats (earlier **79** and **41**).
- **Madhya Pradesh** currently has the **highest number of ST-reserved** Lok Sabha seats (**6**). States such as **Kerala** and **Tamil Nadu** have **no** ST-reserved LS seats; **Arunachal Pradesh** and the UT of **Jammu & Kashmir** have **no** SC/ST LS reservation in the usual teaching list.
- Art. **334** originally capped this reservation at **10 years**; the **104th Amendment** extended it to **25 January 2030** (80 years from commencement).
- That same 104th Amendment extended **SC/ST reservation** but did **not** extend **Anglo-Indian nomination** — the two are separate facts.
- The **term** of the Lok Sabha under Art. **83** is **5 years** from the date of its **first meeting**, unless it is **dissolved earlier**.
- During a National Emergency (राष्ट्रीय आपात), the Lok Sabha's life may be **extended one year at a time**, but not beyond **six months** after the Emergency ends.
- The **minimum age** to be a Lok Sabha member is **25 years**.
- **Uttar Pradesh** sends **80** members to the Lok Sabha — the **largest** of any State — followed by **Maharashtra (48)** and **West Bengal (42)**.

- The **first general election** ran from **25 October 1951 to 21 February 1952** for **489** seats; the first Lok Sabha met on **13 May 1952**.
- **G. V. Mavalankar** was the first Speaker; the first motion seeking removal of a Speaker (1954) was moved against him and **rejected**. **M. A. Ayyangar** was the first Deputy Speaker. **Meira Kumar** was the first woman Speaker. **Om Birla** is Speaker of the **18th** Lok Sabha.

PYQ — UPPCS Prelims 2018, Q150

What can be the maximum representation from the Union Territories to the Lok Sabha?

A. 15 B. 20 C. 25 D. None of the above

Show answer

Ans: B — 20 (Art. 81).

PYQ — UPPCS Prelims 2022, Q141

Which one of the following pairs is **NOT** correctly matched?

A. 13th Lok Sabha — 1999 B. 11th Lok Sabha — 1996 C. 9th Lok Sabha — 1989 D. 7th Lok Sabha — 1982

Show answer

Ans: D. The **7th Lok Sabha** was constituted in **1980** (not 1982).

Lok Sabha vs Rajya Sabha (one table)

Point	Lok Sabha	Rajya Sabha
Nature	**Popular** chamber; can be **dissolved**	**Federal / continuing** chamber; **never** dissolved
Election	Direct (FPTP)	Indirect (PR-STV by elected MLAs)
Max strength	**550** (+ 2 Anglo-Indian, now ended)	**250** (238 + 12 nominated)
Present	**543**	**245**
Term	**5 years** (House)	**6 years** (member); 1/3 retire every 2 years
Min. age	**25**	**30**
Presiding officer	**Speaker** (a member)	**Vice-President** (not a member)
Money Bill	Introduced **only here**; Speaker's certificate final	Cannot reject / amend; 14-day recommendatory role
Confidence	CoM responsible **only to LS**	No-confidence **cannot** be moved
Joint sitting	Speaker presides; LS numbers usually prevail	Sits as one body with LS

Point	Lok Sabha	Rajya Sabha
Representation	Population-based	**Fourth Schedule** — **not** equal per State

Exclusive powers (quick split)

Only Lok Sabha	Only Rajya Sabha
Introduce **Money Bill** / **Appropriation**	Art. **249** (State List in national interest)
No-confidence / confidence / adjournment motion	Art. **312** (new All-India Service)
Vote on **Demand for Grants**	Initiate **removal of the Vice-President**
Decide (via Speaker) that a Bill is a Money Bill	—

> **Logic:** Emergency proclamations, ordinary Bills, CABs and impeachment of the President are **not** LS-only — both Houses act.

Qualification & Disqualification (Arts. 84, 101–103)

Who sits, who goes: Art. **84** qualifies; Arts. **101–103** vacate / disqualify.

Qualification (Art. 84)

- A candidate must be a **citizen of India**.
- A candidate must **make and subscribe an oath or affirmation** in the form given in the **Third Schedule**.
- That oath is taken under Art. **99**, before the **President** or a person appointed by him — in a newly constituted Lok Sabha, this is the **Pro Tem Speaker**.
- The minimum age is **25 years** for the Lok Sabha and **30 years** for the Rajya Sabha.
- Parliament may prescribe further qualifications by law — currently the **Representation of the People Act, 1951**.
- For the **Lok Sabha**, a candidate must be a **registered elector** in **any** parliamentary constituency in India.
- For the **Rajya Sabha**, after the **2003** amendment of the Representation of the People Act, a candidate need only be an elector in **any** parliamentary constituency in India — he need **not** be a voter of the State from which he contests. (The older State-voter rule is a frequent outdated trap.)
- The Constitution prescribes **no educational qualification** for either House.

Vacation of seats (Art. 101)

- A person elected to **both Houses of Parliament** must choose one; under the **RPA**, he must intimate his choice within **10 days**, failing which his **Lok Sabha seat** is vacated.
- A person who is a **member of Parliament and also of a State legislature** loses his **Parliament seat after 14 days** unless he resigns the State seat first (Art. **101(2)**).

- A member may **resign** by writing to the **Speaker** (Lok Sabha) or the **Chairman** (Rajya Sabha), who must be satisfied that the resignation is **voluntary and genuine**.
- If a member is **absent for 60 days without permission**, the House **may declare** his seat vacant (Art. **101(4)**).
- Days when the House is **prorogued** or **adjourned for more than 4 consecutive days** are **not counted** within that 60-day period.
- A member's seat is also vacated if he is elected **President or Vice-President**, or is appointed **Governor** of a State — offices incompatible with a parliamentary seat.

PYQ — UPPCS Prelims 2018, Q75

After how many days of absence from Parliament without permission can a M.P. be disqualified?

A. 30 days B. 60 days C. 90 days D. 120 days

Show answer

Ans: B — 60 days (Art. 101(4)). Strictly, the House *declares the seat vacant* — the paper uses "disqualified."

Disqualification (Art. 102) — five heads

A person is disqualified from being a member of either House under Art. **102** on any of five grounds:

1. He **holds an office of profit** under the Union or a State, other than an office exempted by Parliament.
2. He has been **declared of unsound mind** by a competent court.
3. He is an **undischarged insolvent**.
4. He is **not a citizen of India**, or has **voluntarily acquired the citizenship** of a foreign State, or **acknowledges allegiance** to a foreign State.
5. He is disqualified under **any law made by Parliament** — the **RPA, 1951** — or under the **Tenth Schedule** (defection).

RPA, 1951 — high-yield (Art. 102(1)(e)) - A member **convicted** and sentenced to **2 years or more** of imprisonment stands disqualified. - In *Lily Thomas* (2013), the Supreme Court struck down the RPA's three-month "appeal window" in s. 8(4), so disqualification on such a conviction is now **immediate**. - Other RPA grounds include **corrupt election practices**, **failure to lodge election expenses**, **dismissal from government service** for corruption or disloyalty, and holding a **government contract** or an office under a government company (कंपनी). - The disqualification for the 2-year conviction head generally runs for **6 years from release**.

Who decides - Disqualification under the **Art. 102 heads** — office of profit, insolvency, citizenship, RPA grounds — is decided by the **President**, acting on the **binding opinion** of the **Election Commission** (निर्वाचन आयोग) (Art. **103**). - Disqualification under the **Tenth Schedule** (defection) is decided by the **Speaker or Chairman**, subject to **judicial review** (*Kihoto Hollohan*, 1992).

Office of Profit

- The term **"office of profit"** is **not defined** in the Constitution.

- The Supreme Court tests it by asking whether the **government appoints** to the office, **pays remuneration**, and **exercises control** — and whether the office could **influence the member's independence**.
- **Parliament may exempt** specific offices by law — the **Parliament (Prevention of Disqualification) Act, 1959** — covering ministers, whips, and certain parliamentary secretaries, among others.
- **Ministers** are **expressly excepted** from this disqualification in Art. **102** itself.
- **Jaya Bachchan**, a Rajya Sabha member, was disqualified for holding an office in a **UP film-development body** — the best-known office-of-profit case.

> **Logic:** Office-of-profit → **President + EC** (Art. 103). **Defection** → **Speaker/Chairman**. Do not mix the two forums.

Speaker, Deputy Speaker, Pro Tem Speaker

Speaker is an elected LS member who runs the House — **not** appointed by the Election Commission.

- The **Speaker (Art. 93)** is elected by the Lok Sabha from among its own members.
- The date of that election is fixed by the **President** for the first Lok Sabha, and by the **Speaker himself** thereafter.
- The Speaker **remains in office even after dissolution**, until the **first meeting of the new Lok Sabha**.
- The Speaker **resigns** by addressing the **Deputy Speaker**; the Deputy Speaker, in turn, resigns to the **Speaker**.
- **Removal (Art. 94)** requires a resolution with **14 days' notice**, passed by a **majority of all the then members** of the Lok Sabha (an **effective majority**).
- While that removal resolution is under consideration (**Art. 96**), the Speaker **shall not preside**, but he **may speak and take part**, and he may vote **in the first instance** — he does **not** get a casting vote if votes are equal.
- The Speaker **does not vote in the first instance** in ordinary sittings; he casts a **vote only to break a tie**, including in a joint sitting (**Art. 100**).
- The Speaker **does not take a separate oath of office** beyond his oath as a member of the House — a frequent contrast with the President, Vice-President, PM and judges.
- In the **Warrant of Precedence** (वरीयता), the Speaker ranks at **6** (with the CJI); Cabinet Ministers rank **7** and the Attorney General **11** — the full table is in **Topic 6 — Union Executive**.
- The **Lok Sabha Secretariat** works under the **Speaker**; recruitment rules for the secretariat staff are framed by the **President after consultation with the Speaker** (Art. **98**).

Speaker — powers (list)

- The Speaker is the **final interpreter** of the Constitution and the Rules of Procedure **inside the House**.
- The Speaker may **adjourn or suspend** the sitting when there is **no quorum**, and maintains order by **naming or suspending** a member.

- The Speaker decides whether a Bill is a **Money Bill** (Art. **110**), and that decision is **final**.
- The Speaker **presides over a joint sitting** of both Houses (Art. **108**).
- The Speaker decides **Tenth Schedule** disqualification cases, subject to **judicial review**.
- The Speaker may **allow a secret sitting** of the House.
- The Speaker **appoints the chairpersons** of Lok Sabha committees, and is himself the ***ex-officio* chair** of the Business Advisory, Rules, and General Purposes Committees.
- The Speaker is the **guardian of the privileges** of the House and the **head of the Lok Sabha Secretariat**.
- The Speaker **does not vote in the first instance** — only a **casting vote** on a tie.

Deputy Speaker (Art. 93–95)

- The **Deputy Speaker** is a **constitutional office**, elected from among Lok Sabha members **after** the Speaker's own election.
- By **convention** — often broken in practice — the Deputy Speaker comes from the **opposition**. The post has been **vacant since May 2019** through the 17th and into the 18th Lok Sabha teaching window.
- The Deputy Speaker **performs the Speaker's duties** whenever the Speaker is absent.
- When the Deputy Speaker presides, he has the **same powers** as the Speaker for that sitting, and **no appeal** lies against his rulings.
- The Deputy Speaker **cannot preside** when a resolution for his **own removal** is under consideration.
- The Deputy Speaker's **removal** follows the same procedure as the Speaker's — **14 days' notice** and a majority of **all the then members**.
- The **Deputy Speaker presides** when a resolution for the **Speaker's removal** is under consideration, and the **Speaker presides** if it is the Deputy Speaker's removal that is being considered.

Panel of Chairpersons

- The **Panel of Chairpersons** is nominated by the Speaker from among Lok Sabha members.
- Panel members **preside** only when **both** the Speaker and the Deputy Speaker are absent.
- The Panel is **not a constitutional office**, and it **cannot preside** over a sitting that is considering the **Speaker's removal**.

Pro Tem Speaker - The **Pro Tem Speaker** is appointed by the **President**, usually the **senior-most member** by convention — this is **not** a constitutional rule. - The Pro Tem Speaker **administers the oath** to new members (Art. **99**) and **conducts the election** of the new Speaker. - His office **ends** as soon as the new Speaker is elected.

High-yield Speakers & Historical Traps - **G.V. Mavalankar** was the **first Speaker** of the Lok Sabha (1952–1956); hailed by Jawaharlal Nehru (जवाहरलाल नेहरू) as the **"Father of the Lok Sabha"**. - **First Speaker faced with Removal Motion: G.V. Mavalankar** was the first Speaker against whom a resolution for removal was moved in the Lok Sabha (on **18 December 1954** by opposition members led by J.B. Kripalani; the resolution was discussed and defeated by the House). - **First Deputy Speaker: M. Ananthasayanam Ayyangar** (later became Speaker upon Mavlankar's death in 1956). - **Speakers who died in office: G.V. Mavlankar** (1956) and **G.M.C. Balayogi** (2002, in a helicopter crash). - **Speaker who became President of India: Neelam Sanjiva Reddy** (resigned as Speaker in 1969; elected Speaker

again in March 1977, then resigned in July 1977 to become the 6th President of India — elected unopposed). - **Longest serving Speaker: Dr. Balram Jakhar** (served two consecutive full terms from 1980 to 1989 across 7th and 8th Lok Sabha). - **Meira Kumar** was the **first woman Speaker**, in the 15th Lok Sabha (2009–2014; Sasaram (सासाराम) constituency). Second woman Speaker: **Sumitra Mahajan** (16th Lok Sabha). - **G.M.C. Balayogi** was the **first Dalit (दलित) Speaker**. - **P.A. Sangma** (11th Lok Sabha) remains the **only tribal (आदिवासी) Speaker** so far. - **Om Birla** has been Speaker of both the **17th and 18th** Lok Sabhas.

PYQ — UPPCS Prelims 2023, Q6

Who among the following is the first woman Speaker of the Lok Sabha?

A. Pratibha Patil B. Urmila Singh C. Meira Kumar D. Sushma Swaraj (स्वराज)

Show answer

Ans: C — Meira Kumar.

PYQ — UPPCS Prelims 2025, Q66

Match List-I with List-II and select the correct answer using the code given below the lists.

A. 11th Lok Sabha B. 12th Lok Sabha C. 14th Lok Sabha D. 17th Lok Sabha 1. Om Birla 2. P. A. Sangma 3. Somnath (सोमनाथ) Chatterjee 4. G. M. C. Balayogi

A. A-2, B-4, C-3, D-1 B. A-4, B-2, C-3, D-1 C. A-3, B-2, C-4, D-1 D. A-2, B-3, C-4, D-1

Show answer

Ans: A — 11th Sangma, 12th Balayogi, 14th Somnath Chatterjee, 17th Om Birla.

PYQ — UPPCS Prelims 2020, Q132

Match List-I with List-II and select the correct answer using the codes given below the lists.

A. Article 61 B. Article 67(b) C. Article 94 D. Article 90 1. Removal of Deputy Chairman of Rajya Sabha 2. Impeachment of President 3. Removal of Vice-President 4. Removal of Speaker

A. A-2, B-4, C-3, D-1 B. A-3, B-2, C-4, D-1 C. A-2, B-3, C-4, D-1 D. A-4, B-1, C-3, D-2

Show answer

Ans: C — 61-President, 67(b)-VP, 94-Speaker, 90-Deputy Chairman RS.

> **Logic:** Election of Speaker / Deputy Speaker / Deputy Chairman is **internal to the House** — **not** conducted by the Election Commission.

Chairman of the Rajya Sabha

- The **Vice-President** is the ***ex-officio* Chairman** of the Rajya Sabha (Arts. 64, 89), and he is **not himself a member** of the House.
- The Chairman **votes only a casting vote**, except when the resolution under consideration is for his **own removal** — then he **cannot preside**.
- When the Vice-President **acts as, or discharges the functions of, the President**, he **does not** perform the Chairman's duties; the **Deputy Chairman** presides instead.
- The **Deputy Chairman** is a **member** of the Rajya Sabha, elected from among its own members.
- He is **removed** under Art. **90** by a majority of **all the then members** of the Rajya Sabha, after **14 days' notice**.
- The Deputy Chairman **resigns to the Chairman**.

Speaker vs Chairman

Point	Speaker (LS)	Chairman (RS)
Who	Elected LS member	**VP** — not a member
Removal	Art. **94** — LS alone	Art. **67** — RS effective majority **+ LS agrees**
When he is absent	Deputy Speaker	Deputy Chairman
Joint sitting	**Presides**	**Does not preside**
Money Bill certificate	**Yes** (Art. 110)	No
Casting vote	Yes	Yes

PYQ — UPPCS Prelims 2025, Q119

With reference to the Vice-President of India, which of the following statements is/are correct?

1. The Vice-President is the ex-officio Chairman of the Rajya Sabha.
2. The Vice-President is a member of the Rajya Sabha.

A. Both 1 and 2 B. Neither 1 nor 2 C. Only 2 D. Only 1

Show answer

Ans: D — Only 1.

Sessions — Summoning, Prorogation, Adjournment, Dissolution (सत्र — आहूत करना, सत्रावसान, स्थगन एवं विघटन: Art. 85)

Parliament is summoned by the **President** (on CoM advice). In practice there are **three sessions** a year:

- **Budget:** Jan/Feb – May (longest; contains the President's **special address** at the first session of the year).

- **Monsoon:** July – August/September.
- **Winter:** November – December.

Recess (दीर्घावकाश) = the period between **prorogation** (सत्रावसान) of one session and the **summoning** (आहूत करना) of the next.

Device	Who	What it ends	What lapses
Summon (आहूत करना)	**President** (राष्ट्रपति)	Starts a session. Max gap between two sessions: **6 months** (≥ **two** sessions a year)	—
Adjournment (स्थगन)	**Presiding officer** (पीठासीन अधिकारी)	A **sitting** (बैठक: hours/days)	**Nothing** — business is only postponed
Adjournment *sine die* (अनिश्चितकाल के लिए स्थगन)	Presiding officer	A sitting **indefinitely** (no date)	Nothing by itself
Prorogation (सत्रावसान)	**President** (can prorogue even while adjourned sine die)	A **session** (सत्र)	Notices of questions, motions, resolutions. **Bills do not lapse**
Dissolution (विघटन)	**President** (only **LS**; on PM advice, including a PM who has lost majority in some situations)	**Life of the Lok Sabha** (लोकसभा का कार्यकाल समाप्त)	See bill-lapse fact below

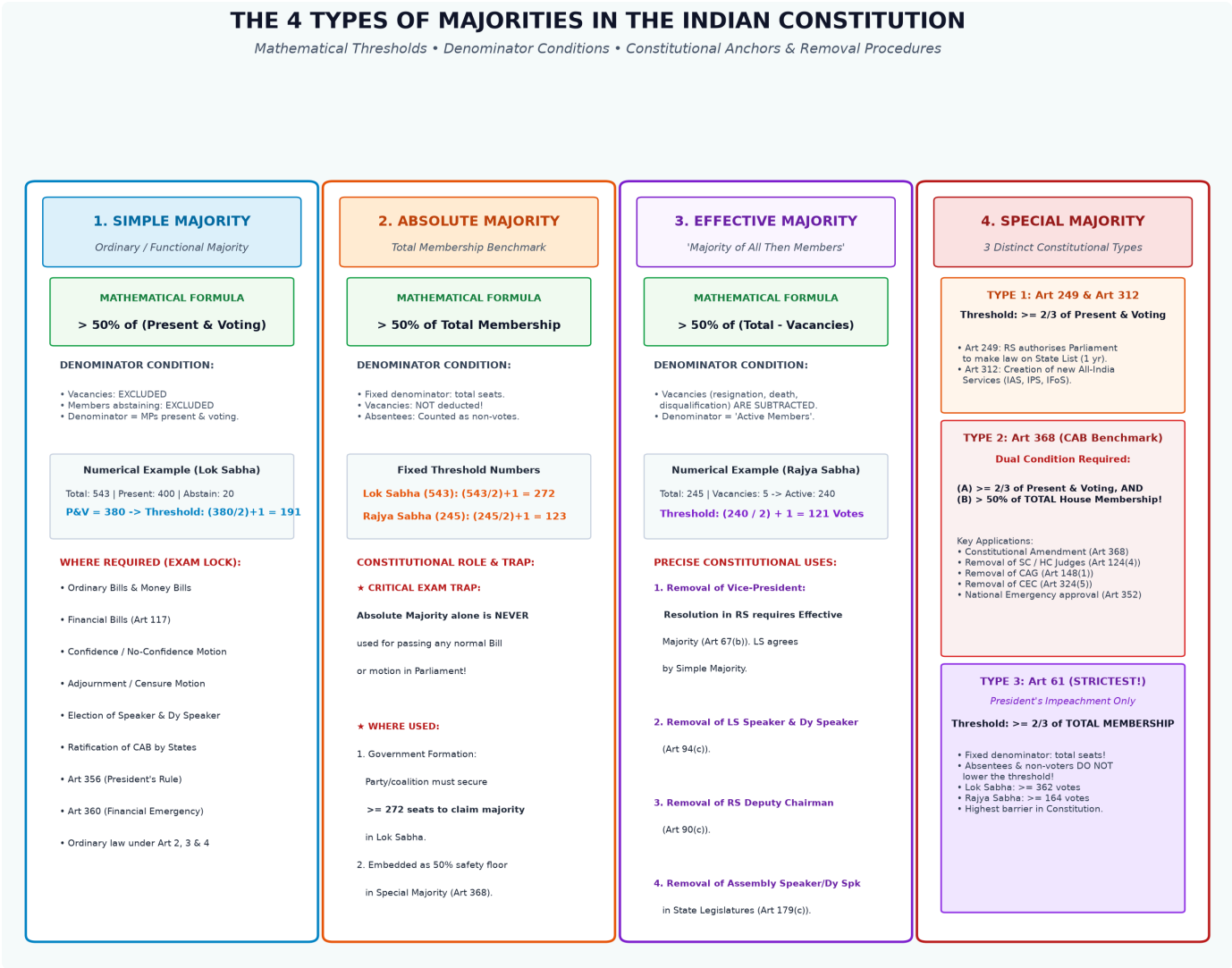
Lapsing on dissolution of LS - Pending **in LS** → **lapses**. Passed by LS and pending in RS → **lapses**. - Pending in RS **and not yet passed by LS** → **does not lapse**. - Passed by **both Houses** and pending **assent / joint sitting already summoned** → **does not lapse**.

Lame Duck Session (पंगु सत्र) Last session of the **outgoing** Lok Sabha **after** a new Lok Sabha has been elected (members who will not return are the “lame ducks” / पंगु सदस्य).

Art. 86 / 87 - **86:** President may **address** either House / both and send **messages**. - **87:** special address to **both Houses assembled together** — first session after each general election **and** first session of each year.

> **Logic:** Adjournment ≠ prorogation ≠ dissolution. Only the **President** prorogues/dissolves; only the **presiding officer** adjourns. Prorogation does **not** kill Bills.

Visual Reference: Mathematical Majorities in the Indian Constitution



Quorum & voting (गणपूर्ति / कोरम एवं मतदान: Art. 100)

- The **quorum** (गणपूर्ति / कोरम) to constitute a meeting of either House is **one-tenth (1/10)** of that House's **total membership** (सदन की कुल सदस्य संख्या का 1/10वां भाग: Art. 100(3)).
- In rough numbers, this works out to about **55** for the Lok Sabha and about **25** for the Rajya Sabha.
- The quorum for a **joint sitting** is **one-tenth of the total membership of both Houses combined**.
- If there is **no quorum**, the presiding officer must **adjourn** or **suspend** the sitting.
- The default rule for deciding a question is a **majority of members present and voting**.
- The **Speaker or Chairman does not vote in the first instance** and casts only a **casting vote** on a tie.
- The House may vote by **voice vote**, by **division** (lobby or recorded vote), or by **secret ballot**.
- **Secret ballot** is used only for *elections* — such as that of the Speaker or Deputy Speaker — and **not** for ordinary legislation.

Joint Sitting (Art. 108)

Art. 108 is the deadlock device for **ordinary Bills only** — never Money Bills or CABs.

When (deadlock on an **Ordinary Bill**): 1. The other House **rejects** the Bill, **or** 2. The Houses finally **disagree** on amendments, **or** 3. More than **six months** elapse from receipt of the Bill by the other House without it being passed (period when a House is prorogued/adjourned >4 days does not count).

The **President** summons the joint sitting if the Bill has not already lapsed by dissolution.

- The joint sitting is provided for in Art. **108** — **not** Art. 109, which is the Money Bill procedure.
- A joint sitting can be summoned for **Ordinary Bills only**.
- A joint sitting can **never** be summoned for a **Money Bill**, an **Appropriation Bill**, or a **Constitutional Amendment Bill** — Art. 368 requires a CAB to be passed by each House separately.
- The **Speaker** presides over a joint sitting; if he is absent, the **Deputy Speaker of the Lok Sabha** presides; if both are absent, the **Deputy Chairman of the Rajya Sabha** presides.
- The **Chairman (Vice-President) never presides** over a joint sitting.
- Decisions are taken by a **simple majority** of members **present and voting**, with the two Houses sitting as one body.
- The quorum for a joint sitting is **one-tenth of the total membership of both Houses**.

Joint sittings actually held (3): Dowry Prohibition (प्रतिषेध) Bill **1961**; Banking Service Commission (Repeal) Bill **1978**; POTA Bill **2002**.

PYQ — UPPCS Prelims 2025, Q141

With reference to the Joint Sitting of Parliament, which of the following statements is/are correct?

1. Article 109 of the Constitution of India provides for the Joint Sitting of Parliament.
2. A Joint Sitting of Parliament may be called to pass a Constitution Amendment Bill.

A. Both 1 and 2 B. Neither 1 nor 2 C. Only 2 D. Only 1

Show answer

Ans: B — Neither. Joint sitting = **Art. 108**; CAB cannot go to a joint sitting.

PYQ — UPPCS Prelims 2023, Q22

With reference to the **joint sitting of Parliament**, which statement(s) is/are correct?

1. Article 109 provides for the joint sitting of both Houses in certain cases.
2. The Speaker presides over the joint sitting of the two Houses of Parliament.

A. Only 1 B. Only 2 C. Both 1 and 2 D. Neither 1 nor 2

Show answer

Ans: B — Only 2. Article is **108**, not 109.

PYQ — UPPCS Prelims 2020, Q128

Joint sitting of Lok Sabha and Rajya Sabha can take place to resolve deadlock over

A. Ordinary Legislation B. Money Bill C. Constitutional Amendment Bill D. Appropriation Bill

Show answer

Ans: A — Ordinary Legislation.

Parliamentary Privileges (Art. 105 / States: 194)

Originally, the privileges of each House were those of the **British House of Commons**, until Parliament defined them by law. The **44th (44वां संशोधन) Amendment** replaced that UK reference: privileges are now those existing on **20 June 1979**, until Parliament defines them by law. **No comprehensive codification** exists yet.

- Every member has **freedom of speech** in the House (Art. 105(1)–(2)); that speech is **not actionable** in any court.
- Every member is free from **arrest in civil cases** during the session and for **40 days before and after** it.
- There is **no privilege against criminal arrest or preventive detention** — the freedom-from-arrest privilege covers **civil cases only**.
- Members are also **exempt from jury service**.
- As a **collective privilege**, each House may **publish its own debates**, **exclude strangers**, and hold a **secret sitting**.
- Each House may **make its own rules** of procedure and **punish members and outsiders alike** for **breach of privilege or contempt** — by reprimand, admonition, imprisonment till the end of the session, or suspension.
- Each House has the right to **regulate its own internal proceedings**.
- **True reports** of parliamentary proceedings are protected from action, a protection added by the **44th Amendment** after the *Searchlight* case.
- Under Art. **122**, courts **shall not inquire** into parliamentary proceedings on the ground of **irregularity of procedure**.
- In *Raja (राजा) Ram Pal* (2007), the Supreme Court held that judicial review is **not entirely barred** where the proceeding is **without jurisdiction** or **mala fide**.
- Parliamentary privileges are **not Fundamental Rights (मौलिक अधिकार)** — they are constitutional protections of the House as such.
- Speech **inside** the House is privileged; the **same speech repeated outside** the House is not.

Leader of the House & Leader of the Opposition

Neither office appears in the text of Arts. 79–122; the Leader of the Opposition is a **statutory** office.

- The **Leader of the House** in the Lok Sabha is normally the **Prime Minister** himself.

- If the Prime Minister sits in the Rajya Sabha, a **Cabinet Minister** (कैबिनेट मंत्री) is nominated as Leader of the House in the Lok Sabha.
- In the Rajya Sabha, the Leader of the House is a **minister nominated by the Prime Minister**.
- The Leader of the House is **not a constitutional office** in either case.
- The **Leader of the Opposition** is a **statutory** office under the **Salary and Allowances of Leaders of Opposition in Parliament Act, 1977**.
- The Leader of the Opposition is **recognised by the Speaker or Chairman**.
- By convention, the Leader of the Opposition comes from the **largest opposition party**, which must have at least **10% of the House's strength**.
- The Leader of the Opposition ranks roughly with a **Cabinet Minister**.
- The Leader of the Opposition has a **seat on the Selection Committee** of bodies such as the **Lokpal (लोकपाल), CVC, CIC, and NHRC (राष्ट्रीय मानव अधिकार आयोग)**.

Whip

The **Whip** is an **extra-constitutional** party office, not found anywhere in Arts. 79–122. He directs party members on **attendance and voting**. The **Chief Whip** of the treasury benches is typically the **Minister of Parliamentary Affairs**.

- **Defying a whip** can attract **Tenth Schedule** disqualification, unless the vote falls within one of the Schedule's exceptions.
- A **one-line whip** merely informs members of the date and time and **requests attendance**.
- A **two-line whip** makes **attendance essential**.
- A **three-line whip** requires **attendance and voting as directed** — the most serious kind, whose defiance can trigger defection proceedings.

Parliamentary Secretariat (Art. 98)

- The Lok Sabha and Rajya Sabha each have a **separate Secretariat**, independent of the executive.
- Secretariat staff are recruited under rules made by the **President**, after consulting the **Speaker or Chairman**.
- The **Speaker or Chairman** supervises the Secretariat of his House.
- The **Secretary-General** of each House is its administrative head and chief adviser on procedure, and he **continues in office** even across a dissolution of the Lok Sabha.
- Each House also has a **Parliamentary Notice Office**, its own reporters, and a library — the Lok Sabha Secretariat runs the **Parliament Library**.

Budget & the three funds (Arts. 112, 265–267)

The Constitution never uses the word **"Budget"**. Art. **112** requires the President to cause the **Annual Financial Statement (AFS)** to be laid before **both Houses**. **Art. 265:** no tax shall be levied or collected

except by **authority of law**.

Fund	Article	What goes in	Vote of Parliament?
Consolidated Fund of India (CFI)	**266(1)**	All revenues, loans raised, loan repayments	**Yes** — no money out except by **Appropriation Act**
Public Account of India	**266(2)**	Provident funds, remittances, deposits (govt as banker)	**No** — executive operates without a vote
Contingency Fund of India	**267**	Imprest for unforeseen expenditure; at the **disposal of the President** (in practice Finance Secretary); later **recouped from CFI**	Corpus fixed by Parliament by law

Two parts of the AFS - The **Revenue Budget** sets tax and non-tax receipts against revenue expenditure; it **does not create assets**. - The **Capital Budget** sets capital receipts (loans, disinvestment) against capital expenditure (assets, loan repayments).

Charged vs Voted (Art. 112(3) / 113)

Expenditure **charged** on the Consolidated Fund is only **discussed**, and is **not put to the vote**. Voted expenditure (मतदेय) is placed before the House as **Demands for Grants**, and only the **Lok Sabha** votes on it. The Lok Sabha may **assent to, refuse, or reduce** a demand, but it **cannot increase** a demand or touch a charged item.

Charged on the CFI (learn the list) - The **emoluments of the President** are charged expenditure. - The **salaries and allowances** of the **Speaker and Deputy Speaker** of the Lok Sabha, and of the **Chairman and Deputy Chairman** of the Rajya Sabha, are charged. - The **salaries, allowances, and pensions of Supreme Court judges**, and the **pensions of High Court judges**, are charged. - The **salary, allowances, and pension of the CAG** are charged. - The **debt charges** of the Government of India are charged. - Any sum required to satisfy a **judgment, award, or decree** of a court or arbitral tribunal is charged. - Parliament may also declare, by law, **any other expenditure** to be charged.

> **Trap:** the **Attorney General's** salary is **not** charged. A **Governor's** emoluments are charged on the **State's** Consolidated Fund (Art. 202), not the Union's.

Stages of the Budget

1. **Presentation:** the Finance Minister presents the Budget in the Lok Sabha, and a copy is laid in the Rajya Sabha the same day. Since **2017**, the date is **1 February**, and the **Railway Budget** has been merged with the General Budget; the **Economic Survey** is tabled a day or two earlier.
2. **General discussion:** both Houses discuss the Budget as a whole; there is **no voting**, and the Finance Minister replies.
3. **DRSC scrutiny:** the Departmentally Related Standing Committees scrutinise ministry-wise demands over roughly **21 days**.
4. **Voting on Demands for Grants:** only the **Lok Sabha** votes, usually over about **26 days**; **cut motions** are moved only at this stage, and **not** on charged items.
5. **Guillotine:** on the last allotted day, all remaining demands are put to the vote **without discussion**.

6. **Appropriation Bill (Art. 114):** this Bill legalises withdrawals from the Consolidated Fund — covering charged, voted, and vote-on-account amounts. **No amendment** may vary the amount or destination of a grant, and the Bill **is a Money Bill**.
7. **Finance Bill:** this carries the year's **taxation** proposals and must be passed within **75 days** of introduction under the **Provisional Collection of Taxes Act**; it is usually certified as a **Money Bill**.

The **Rajya Sabha may discuss** the Budget but **cannot vote** on the Demands, and it cannot reject the Appropriation or Finance Money Bills beyond its usual **14-day recommendatory role**.

The Lok Sabha can only **reduce or reject** a demand — it can **never increase** one. A passed **policy cut** is treated as a **censure** of the policy behind that demand.

- A **Vote on Account** grants **expenditure only**, for a few months, under Art. 116.
- An **Interim Budget** is a **full Annual Financial Statement**, including tax proposals, presented by a government that will not see out the full year.
- **Re-appropriation** lets the executive **shift savings** from one head to another **within the same grant**, without a fresh vote of Parliament.
- The **Motion of Thanks** on the President's special address is discussed in both Houses, and **amendments** may be moved on it.
- If the **Motion of Thanks is defeated in the Lok Sabha**, this is treated as the government having lost the confidence of the House.

PYQ — UPPCS Prelims 2021, Q98

Which of the following Articles of the Indian Constitution is related to Contingency Fund?

A. Article 265 B. Article 266 C. Article 267 D. Article 268

Show answer

Ans: C — Article 267. 265 = no tax except by law; 266 = CFI + Public Account; 268 = duties levied by Union, collected by States.

PYQ — UPPCS Prelims 2024, Q102

Match List-I and List-II and choose the correct answer from the codes given below the lists:

List-I

Code	Item
A	Consolidated Fund of India
B	Finance Commission (वित्त आयोग)
C	Financial Emergency (वित्तीय आपात)
D	Comptroller and Auditor General of India

List-II

Code	Item
1	Article 266
2	Article 360
3	Article 280
4	Article 148

> Note: Row order in the tables is **not** the answer.

A. A-3, B-1, C-2, D-4 B. A-4, B-1, C-3, D-2 C. A-1, B-3, C-2, D-4 D. A-1, B-2, C-3, D-4

Show answer

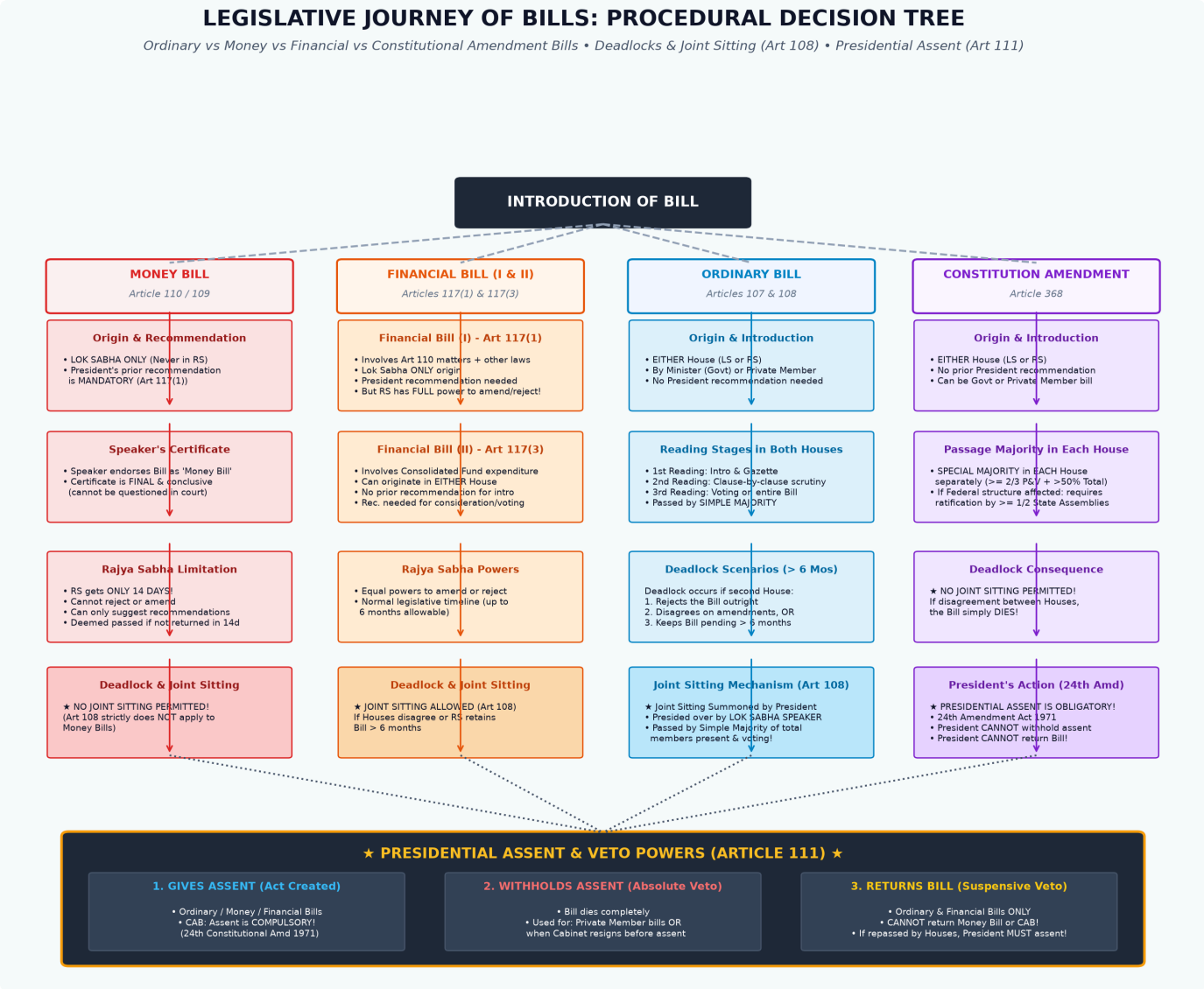
Ans: C — 266, 280, 360, 148.

Other grants (Arts. 115–116)

- A **Supplementary Grant (115)** provides an extra amount for a service that is **already authorised** but for which the original grant proves insufficient.
- An **Additional Grant (115)** funds a **new service** not contemplated in the original budget.
- An **Excess Grant (115)** covers money already **spent beyond** the sanctioned grant; it needs the **PAC's** approval before the Lok Sabha votes on it.
- A **Vote on Account (116)** is an advance grant to keep the government running, for a few weeks or months, until the Appropriation Act is passed — usually about **two months**.
- A **Vote of Credit (116)** is a blank-cheque grant for an **unexpected demand**, such as a war, where only a description of the need is given, not full details.
- An **Exceptional Grant (116)** meets a **special purpose** that forms **no part** of the current service of any financial year.
- A **Token Grant** is a practice, not found in the Constitution, of a **₹1** demand so that expenditure can be met by re-appropriation.

> **Logic:** Demands for Grants, cut motions, no-confidence, adjournment motion = **Lok Sabha only**. RS discusses the Budget but **does not vote** the demands.

Procedural Architecture: Legislative Journey of Bills & Joint Sitting (Art 108)



Bills — types and traps

Ordinary / Money / Financial / Finance / CAB are different animals — article numbers do not swap.

Ordinary Bill (Arts. 107–108) — stages

An Ordinary Bill may **originate in either House** and needs a simple majority of members **present and voting** in each. A deadlock between the Houses is resolved by a **joint sitting (Art. 108)**. The **President** may assent, withhold assent, or **return the Bill once**; if Parliament **repasses** it, the President **must** assent.

- The **first reading (रीडिंग)** is the Bill's introduction, with the leave of the House; it is then published in the Gazette, and there is **no discussion** on its merits at this stage.
- The **second reading** has two parts: first, a **general discussion**, during which the Bill may be sent to a **Select or Joint Committee** or circulated for public opinion; second, **clause-by-clause consideration**, when amendments are moved.
- The **third reading** takes up the Bill **as a whole**, and only **verbal amendments** are allowed at this stage.

- A Bill passed by one House then goes to the **other House**, which repeats the same three readings.
- Under Art. **111**, the President may **assent, withhold assent, or return** a Bill — but this option to return does **not** apply to a Money Bill.

By convention, a **Government Bill** defeated in the Lok Sabha on a major policy issue is treated as a **loss of confidence**.

Money Bill (Arts. 109–110) — the highest-yield bill

Definition = Art. 110.Procedure = Art. 109. Do not swap them.

A Bill is a Money Bill **only if** it contains provisions dealing with **all or any** of Art. **110(1)(a)–(g)**: **(a)** imposition, abolition, remission, alteration or regulation of any **tax(b)** regulation of **borrowing** of money or giving of any guarantee by the Government of India **(c)** custody of the **CFI or Contingency Fund**, payment into or withdrawal from either **(d)appropriation** of money out of the CFI **(e)** declaring any expenditure **charged** on the CFI, or increasing such amount **(f)** receipt of money on account of the CFI or the **Public Account**, or custody/issue of such money **(g)** any matter **incidental** to (a)–(f)

Article **110(2)** expressly excludes some matters from being treated as a Money Bill: **fines or pecuniary penalties**, **fees for licences or services**, and **local taxes** raised for local purposes are **not** Money Bill content.

- A Money Bill can be **introduced only in the Lok Sabha**, and only on the **President's recommendation**.
- The **Speaker's certificate** that a Bill is a Money Bill is **final** (Art. 110(3)); it is endorsed both when the Bill is sent to the Rajya Sabha and when it is presented for the President's assent.
- The **Rajya Sabha** has **14 days** from receipt of the Bill to **return it with recommendations**; it **cannot reject or amend** a Money Bill on its own.
- The **Lok Sabha may accept or reject** every recommendation the Rajya Sabha makes.
- A Money Bill is **deemed passed** by both Houses if the Rajya Sabha does nothing within those 14 days, or once the Lok Sabha has considered the recommendations — in whichever form the **Lok Sabha finally decides**.
- A Money Bill **never** goes to a **joint sitting**.
- The **President cannot return** a Money Bill — only assent or withhold assent.
- If a government's Money Bill is **defeated in the Lok Sabha**, this amounts to **supply being denied**, and the government must resign.

PYQ — UPPCS Prelims 2019, Q33

The Money Bill is defined in which Article of the Constitution of India?

A. Article 109 B. Article 110 C. Article 111 D. Article 112

Show answer

Ans: B — Article 110. 109 = *procedure* for Money Bills; 111 = President's assent; 112 = Annual Financial Statement.

PYQ — UPPCS Prelims 2021, Q37

Which of the following Bills can NOT be first introduced in Rajya Sabha?

A. Ordinary Bill B. Constitutional Amendment Bill C. State Re-organisation Bill D. Money Bill

Show answer

Ans: D — Money Bill. CAB and Art. 3 Bills may originate in **either** House (Art. 3 needs President's recommendation).

Money Bill vs Financial Bill vs Finance Bill

	Money Bill Art. 110	Financial Bill I Art. 117(1)	Financial Bill II Art. 117(3)
Contents	**Only** Art. 110 matters	Art. 110 matters **+ other** provisions	Ordinary Bill that involves **expenditure from CFI**
Where introduced	**LS only**	**LS only**	**Either House**
President's recommendation	For **introduction**	For **introduction**	For **consideration** (not introduction)
RS powers	14-day recommendatory	Can **amend / reject**	Can **amend / reject**
Joint sitting	**No**	**Yes**	**Yes**
President's return	**Cannot return**	Can return	Can return

- The **Finance Bill** is the **annual taxation** Bill accompanying the Budget, **usually certified as a Money Bill**, and it must be passed within **75 days** of introduction — do **not** confuse its name with a "Financial Bill".
- The **Appropriation Bill (Art. 114)** authorises withdrawal from the Consolidated Fund, covering charged, voted, and vote-on-account amounts, and **it is a Money Bill**.
- **No amendment** may vary the *amount* or *destination* of a grant in the Appropriation Bill, and **cut motions are not moved** on it — they were already moved on the Demands.
- An **Art. 3 (State reorganisation) Bill** may originate in **either House**, needs the **President's recommendation**, and requires the affected State's views to be sought — though those views are **not binding**; it is **not** a Money Bill.

Constitutional Amendment Bill (Art. 368)

- A Constitutional Amendment Bill may be introduced in **either House** — but **not** in a State legislature — as a Government or a Private Member's Bill.
- Each House must pass it **separately**; there is **no joint sitting** and **no ordinance route** for a CAB.
- Each House needs a **special majority**: a majority of the **total membership**, and **two-thirds of members present and voting**.
- Amendments touching certain **federal features** — such as the Seventh Schedule, Art. 368 itself, or the President's election — also need **ratification by half the States**, each by a simple majority.

- The President **must give assent** to a CAB, following the **24th Amendment** — there is **no veto and no power to return** it.

Private Member's Bill

- A **Private Member's Bill** is introduced by any MP who is **not a Minister**, after **one month's notice**, and is taken up on **Fridays** by ballot.
- It goes through the **same three readings** as any other Bill, but such Bills are **rarely passed** — the last notable Central Act from a private member is decades old.
- A **Government Bill**, by contrast, is introduced by a Minister and gets priority on all other days.

Lapsing of Bills (on dissolution of LS)

- A Bill **pending in the Lok Sabha** at dissolution **lapses**.
- A Bill **passed by the Lok Sabha but pending in the Rajya Sabha** also **lapses**.
- A Bill **pending in the Rajya Sabha, but not yet passed by the Lok Sabha, does not lapse**.
- A Bill **passed by both Houses and pending only for assent does not lapse**.
- A Bill **passed by both Houses and returned by the President for reconsideration does not lapse**.
- A Bill for which a **joint sitting has already been summoned does not lapse**.
- A Bill that **originated in the Rajya Sabha and is still pending there, awaiting the Lok Sabha's action, does not lapse**.
- **Prorogation, by itself, never lapses a Bill.**

> **Logic:** 110 = definition, 109 = RS 14-day procedure**. A Bill that looks "financial" is** not** automatically a Money Bill — check 117(1)/(3).

Parliamentary devices & motions

House tools for questions, urgency, and censure — **not** a second Bill procedure.

- **Question Hour** is the **first hour** of every sitting, reserved for members to question ministers.
- **Starred questions** are marked with an asterisk and require an **oral answer with supplementaries**; about **20** are listed for a day, and roughly **15** are actually taken up orally.
- **Unstarred questions** call for a **written answer** only, and a larger batch is listed each day.
- **Short-notice questions** are admitted on **less than 10 days'** notice, but need the consent of **both the Speaker and the minister**.
- A **ballot** decides which members' questions get listed for a given day.
- **Zero Hour** is the period **immediately after** Question Hour in the **Lok Sabha** (commonly **12 noon–1 pm**). In the **Rajya Sabha**, Zero Hour often runs **before** Question Hour (**11 am–12 noon**), because RS Question Hour was shifted to noon from **2014**. Papers that assume one fixed clock for both Houses are traps.
- Zero Hour is an **Indian innovation of 1962**, dating to the Nehru era.

- Zero Hour was **not originally in the Rules of Procedure**; it is now regulated by the **Chair's discretion**.
- Matters may be raised in Zero Hour **without prior notice**, and **there is no voting**. Maximum duration in Lok Sabha teaching is about **one hour**.
- A **Half-an-Hour Discussion** takes up a matter of public importance arising out of a **recent question**, on **3 days' notice**, and involves **no voting**.
- A **Short Duration Discussion** (Rule 193 in the Lok Sabha, Rule 176 in the Rajya Sabha) addresses an urgent matter of public importance, normally within **2 hours** (sometimes 2½), with **no voting**.
- **Calling Attention** (Rule 197, Lok Sabha) is an **Indian innovation**: a member calls a minister's attention to an urgent matter, the minister makes a **statement**, and only brief clarificatory questions follow — again **no voting**. It is allowed in **both** Houses.
- An **Adjournment Motion** can be moved **only in the Lok Sabha** — the Rajya Sabha has no such motion.
- An Adjournment Motion seeks to set aside the day's business to discuss a **definite, factual, and urgent** matter of public importance.
- It needs the support of **50 members** and the **Speaker's consent** to be admitted.
- Moving it **implies a censure** of the government, and discussion usually runs about **2½ hours**.
- It is **not admitted** if the matter is **sub judice**, is not definite, or could be raised through some other device.
- A **Censure Motion** can be moved **only in the Lok Sabha**, and the **reasons must be stated** in the motion itself.
- A Censure Motion may target **one minister, a group of ministers, or the entire Council of Ministers**.
- If a Censure Motion is passed, the government **need not automatically resign** — unlike a no-confidence motion — but it is politically damaging and often leads to resignation anyway.
- A **No-Confidence Motion** (Rule 198) can be moved **only in the Lok Sabha**, and is linked to Art. **75(3)**.
- A No-Confidence Motion needs **no reasons** to be stated, unlike a censure motion.
- It requires the support of **50 members** for admission, and **only one** such motion can be taken up at a time.
- If a No-Confidence Motion is passed, the **entire Council of Ministers must resign**.
- A **Confidence Motion** is moved by the **government itself**, seeking the Lok Sabha's confidence — typically after a coalition (गठबंधन) test or a floor-crossing scare.
- **Defeat** of a Confidence Motion also forces the Council of Ministers to **resign**.
- A **Privilege Motion** alleges a **breach of privilege or contempt** by a member, a minister, or an outsider, and is usually referred to the **Privileges Committee**.
- **Cut Motions** can be moved only on **Demands for Grants**, only in the **Lok Sabha**, and **not** on charged expenditure or on the Appropriation Bill.
- A **Closure Motion** seeks to **cut short a debate**; once carried, the matter is put to an immediate vote.
- The kinds of closure are: **simple closure**, **closure by compartments**, the **kangaroo closure** (taking up only selected amendments), and **guillotine-closure**.
- A **Guillotine** puts all remaining demands or clauses to the vote **en bloc**, without further discussion, once the allotted time runs out.

- A **Point of Order** relates **only** to the interpretation or enforcement of the **Rules or the Constitution** inside the House — **not** to the merits of a Bill.
- The **Chair's ruling** on a Point of Order is **final**, and a Point of Order **takes precedence** over other business.
- The **Motion of Thanks** is moved on the President's **Art. 87** address; amendments — including censure-type amendments — may be moved on it.
- If the Motion of Thanks is **defeated in the Lok Sabha**, this is treated as the government having **lost the confidence** of the House.

Adjournment vs Censure vs No-confidence

	Adjournment	Censure	No-confidence
House	**LS only**	**LS only**	**LS only**
Need to state grounds	Yes (the urgent matter)	**Yes**	**No**
Target	Government policy / a happening	A minister **or** CoM	**Entire CoM only**
If passed	Censure implied; business interrupted	Politically fatal; resignation not automatic in theory	**CoM must resign**
Support to admit	**50 members**	As per Rules	**50 members**

Cut motions (three)

Cut	What it says	Meaning
Policy cut	Reduce the demand to **₹1**	Disapproval of the **policy** behind the demand
Economy cut	Reduce by a **specified amount**	Economy should be effected
Token cut	Reduce by **₹100**	Ventilate a **specific grievance**

> **Logic:** Zero Hour is **after** Question Hour, not before, and not the "first hour". No-confidence needs **no grounds**; censure **does**. Adjournment / no-confidence / cut motions = **LS only**.

PYQ — UPPCS Prelims 2021, Q141 — 'Zero Hour' in the working of the Indian Parliament means—

A. The first hour of the Session B. When privilege motion are accepted C. Hour before question hour D. The time immediately following the question hour

Show answer

Ans: D — immediately **after** Question Hour.

Financial Committees

Parliament is assisted by committees that are **appointed or elected** by the Houses or **nominated** by the Speaker / Chairman. They work under the direction of the Speaker / Chairman and report to the House or to the Chair.

Standing vs Ad hoc. Standing committees are **permanent** (constituted every year or periodically) and work continuously. Ad hoc committees are **temporary** and end when their assigned task is done.

Standing committees are commonly grouped as: (i) **Financial Committees**, (ii) **Departmentally Related Standing Committees** (24), (iii) **Committees of Enquiry**, (iv) **Committees to Scrutinise and Control**, (v) **Day-to-day business** committees of the House, and (vi) **Housekeeping / Service** committees. Most joint standing committees draw members from Lok Sabha and Rajya Sabha in roughly a **2:1** ratio (Estimates is the classic exception).

Parliament has three **financial** committees. Members are **elected annually** by proportional representation, using the single transferable vote. **No minister** can be a member of any of the three — a member who is later made a minister must vacate the seat on the committee.

	PAC	Estimates Committee	COPU
Born	**1921** (Montagu–Chelmsford; continued after 1950)	**1950** (John Mathai's suggestion)	**1964** (on Krishna (कृष्णा) Menon's suggestion)
Strength	**22** = **15 LS + 7 RS**	**30 — all LS** (**no RS**)	**22** = **15 LS + 7 RS**
Chair	LS member from the **Opposition** (convention since **1967**); appointed by the **Speaker**	Appointed by the **Speaker** from among members; usually **ruling** party	From LS (usually ruling); appointed by the Speaker
CAG link	**Yes** — examines CAG's audit reports (civil, defence, railways, autonomous bodies, revenue receipts)	**None**	**Yes** — CAG reports **on PSUs** + PSU accounts
Job	Post-mortem of **expenditure already incurred**; appropriation / finance accounts; that money was spent **as Parliament voted**	Examine **budget estimates**; suggest economies and **alternative policies**; organisational / administrative improvements consistent with the policy underlying the estimates	Examine **PSUs**: reports, accounts, efficiency, autonomy; also looks at **disinvestment** of PSUs
Report to	Ordinarily to the **House**; when the House is not in session, may present to the **Speaker** and later to the House (copy laid in Rajya Sabha)	Lok Sabha	Both Houses

PAC extra facts - The **PAC** is the **oldest** of the three financial committees. - The PAC acts as a kind of **mini-Parliament on accounts**, but it **cannot intervene** in the day-to-day administration of a ministry. - The **CAG's audit reports**, laid before Parliament by the **President**, are the PAC's **starting point**. - The PAC also examines **excess grants** before the Lok Sabha votes on them. - **CAG** itself is **not** a

parliamentary committee — it is a constitutional authority under **Article 148**, separate from the three financial committees as tools of parliamentary control.

Estimates extra facts - The **Estimates Committee** is the **largest** among the three financial committees (30), and **Rajya Sabha has no seat** on it. - It **continues the work** of the colonial-era **Standing Finance Committee**. - The Estimates Committee examines only **estimates**, not past accounts, and has **no CAG link**. - A demand that has already been voted can still be **studied by the Estimates Committee** for the following year. - The **Joint Committee on Salaries and Allowances of Members** is a **housekeeping** committee, **not** a financial committee.

COPU extra facts - COPU examines reports and accounts of public undertakings listed in the **Fourth Schedule** to the Lok Sabha Rules, plus CAG reports on those undertakings. - It also checks whether PSUs are managed on **sound business principles**, and may take up PAC / Estimates-type functions for PSUs when allotted by the Speaker.

PYQ — UPPCS Prelims 2025, Q42

With reference to the Public Accounts Committee, which of the following statements is/are correct?

1. The Public Accounts Committee submits its report to the Lok Sabha.
2. The Public Accounts Committee consists of 15 members from Rajya Sabha.

A. Both 1 and 2 B. Neither 1 nor 2 C. Only 2 D. Only 1

Show answer

Logic: PAC strength is 15 Lok Sabha + 7 Rajya Sabha; report goes to the Lok Sabha / Speaker path, not “15 from Rajya Sabha”. **Ans: D — Only 1.** Strength = **15 from LS + 7 from RS** (not 15 from RS).

PYQ — UPPCS Prelims 2025, Q89

Which of the following is/are Financial Committees of the Parliament of India?

1. Public Accounts Committee
2. Estimates Committee
3. Committee on Public Undertakings

A. Only 1 and 2 B. All 1, 2 and 3 C. Only 2 and 3 D. Only 1

Show answer

Logic: Financial trio = PAC + Estimates + COPU; housekeeping / salaries committees are not financial. **Ans: B — All three.**

PYQ — UPPCS Prelims 2022, Q55

The audit report of the Comptroller and Auditor General of India is examined by—

A. Public Accounts Committee B. Public Undertakings Committee C. Estimates Committee D. None of the above

Show answer

Logic: PAC examines CAG reports generally; COPU examines CAG reports **on PSUs**; Estimates has no CAG link. Several keys treat PAC as the primary answer; both PAC and COPU can be correct depending on the stem's scope. **Ans: A — PAC.** (COPU examines CAG reports **on PSUs** only; Estimates has **no** CAG link.)

PYQ — UPPCS Prelims 2021, Q129

The Public Accounts Committee of Indian Parliament scrutinizes the

A. Report of the Comptroller and Auditor General B. Consolidated Fund of India C. Public Account of India D. Contingency Fund of India

Show answer

Logic: PAC's core job is CAG audit (कैग लेखापरीक्षा) reports and appropriation accounts — not control of the three funds as a treasury. **Ans: A.**

PYQ — UPPCS Prelims 2020, Q112

Which is the largest Committee of the Indian Parliament?

A. Public Account Committee B. Estimates Committee C. Committee on Public Undertakings D. Committee on Petitions

Show answer

Logic: Among these options Estimates (30) is largest; a DRSC has 31 but is not listed here. **Ans: B — Estimates (30).** Among the **options**, Estimates is largest. (A **DRSC** has **31** members — not in the options.)

Departmental & other committees

Departmentally Related Standing Committees (DRSCs) - DRSCs were **created in 1993**, with **17** committees at birth; there are now **24**, covering all ministries (**2004** expansion from 17 to 24). - Each DRSC has **31 members** — **21** from the Lok Sabha and **10** from the Rajya Sabha — serving a **one-year term**. - **No minister** can be a member of a DRSC. - **16** DRSCs work under the **Lok Sabha Speaker**, and **8** under the **Rajya Sabha Chairman**. - Example of a **Rajya Sabha** DRSC: **Health and Family Welfare**. Labour, Urban (नगरीय) Development, and Social Justice & Empowerment are among those under the **Lok Sabha**. - DRSCs examine: (i) **Demands for Grants**, (ii) **Bills** referred to them by the Chair, (iii) **annual reports** of ministries, and (iv) **long-term policy documents**. - A DRSC **cannot suggest cut motions** and **cannot consider day-to-day administration**. - DRSC reports are **recommendatory**, not binding on the government. - DRSCs have effectively **replaced the old committee stage** for many Bills. - DRSCs (and ad hoc parliamentary committees) may also **review independent regulators** in sectors such as telecom, insurance, and electricity; bodies like the Finance Commission, NITI (नीति) Aayog (नीति आयोग), or FSLRC are **not** the usual reviewers of those regulators.

Committees of enquiry / scrutinise & control - **Committee on Petitions** — Lok Sabha **15**, Rajya Sabha **10**; a minister is **not** nominated; considers petitions presented to the House and related representations. - **Committee of Privileges** (Lok Sabha **15**, Rajya Sabha **10**) examines alleged **breach of privilege and contempt**, and recommends punishment. - **Ethics Committee** — first in **Rajya Sabha (1997)**; Lok Sabha Ethics began as an **ad hoc** body under Speaker **G.M.C. Balayogi** on **16 May 2000** and became a **standing** committee in the Rules in **2015**. Any person may complain about unethical conduct of an LS member, but a complaint by a non-member must be **forwarded by a member**. The Committee **does not take up sub-judice** matters (Rule 233A). - The **Committee on Subordinate Legislation** (Lok Sabha **15**, Rajya Sabha **15**; members nominated by Speaker / Chairman; **no minister**) examines whether regulations, rules, sub-rules, and bye-laws made under an Act or the Constitution are **within the scope of the delegation** and properly laid. - The **Committee on Government Assurances** watches whether **promises made by ministers** on the floor of the House were actually **kept**. - There is **no** parliamentary committee titled for the **welfare of minorities**; minority welfare is handled through the **National Commission for Minorities** and related machinery — do not confuse with SC/ST or OBC welfare committees.

Other day-to-day / housekeeping committees - The **Business Advisory Committee (BAC)** is presided over by the **Speaker** in the Lok Sabha and the **Chairman** in the Rajya Sabha, and it **allots time** for government and other business; the Lok Sabha BAC has **15 members including the Speaker**, and the House **approves** its report. - The **Rules Committee** is chaired by the Speaker (Lok Sabha strength **15**); it deals with **procedure and conduct of business** and recommends amendments to the **Rules**. - The **General Purposes Committee** — the Speaker, Deputy Speaker, the Panel of Chairpersons, other committee chairs, the LoP, and the Leader of the House — advises on the **arrangements** of the House. - The **Committee on Papers Laid on the Table** checks whether papers that are required to be laid before the House **have in fact been laid**, and on time. - The **Committee on Absence of Members** examines requests for **leave of absence** and recommends whether a seat should be vacated under the **60-day rule**. - The **Joint Committee on Office of Profit** advises on which offices should be **exempted** from the office-of-profit disqualification. - The **Committee on Welfare of SCs and STs** is a standing / functional parliamentary committee — not an “ad hoc-only” body, and not to be confused with “not a standing committee” traps that list PAC / Estimates / COPU alone as the only standing committees.

Consultative Committees & JPCs - **Consultative Committees** are **extra-constitutional** bodies attached to ministries, constituted by the **Ministry of Parliamentary Affairs**, for **informal discussion** — they are **not** House committees. Consultative Committees for **Railway Zones** are also constituted by the **Ministry of Parliamentary Affairs**. - The **Ministry of Parliamentary Affairs** works under the overall direction of the **Cabinet Committee on Parliamentary Affairs**, and the Minister of Parliamentary Affairs nominates MPs on many government-set **committees, councils, boards, and commissions**. - **Joint Parliamentary Committees** are **ad hoc**. The **2G spectrum** JPC had **20 Lok Sabha + 10 Rajya Sabha** members and was chaired by **P.C. Chacko**.

Standing vs Ad hoc (recap) - **Standing committees** are continuous — the financial trio, the DRSCs, BAC, Rules, Privileges, Ethics (now standing), Petitions, Subordinate Legislation, Government Assurances, and others. - **Ad hoc committees** are wound up once their report is submitted — a **Select Committee** (of one House) or a **Joint Committee** (of both Houses) set up on a **specific Bill** or subject (e.g. stock-market scam JPC, 2G JPC).

> **Logic:** Estimates = LS only, 30, no CAG. **PAC / COPU = both Houses, 22, CAG-linked**. **DRSC = 31**, both Houses, **1993 → 24**. Among options “largest committee” in UPPCS 2020 = **Estimates**; a DRSC (31) is numerically larger but was not an option.

Mains link (one frame)

- RS is the **continuing federal chamber** — compensation for not being the confidence House is Arts. **249 / 312**. The same design puts **Money Bills, Demands for Grants and no-confidence** exclusively in the LS. The Speaker’s Art. **110** certificate + the 14-day RS window are how the Constitution stops the Council of States from blocking **supply**.